

1 _____ BILL NO. _____

2 INTRODUCED BY _____

3

4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING THE PROCEDURE FOR A BOARD OF COUNTY
5 COMMISSIONERS TO ADOPT OR AMEND ZONING REGULATIONS; REQUIRING THAT A PUBLIC
6 MEETING BE NOTICED AND HELD BEFORE A BOARD OF COUNTY COMMISSIONERS MAY ADOPT A
7 RESOLUTION TO AMEND A ZONING REGULATION; AND AMENDING SECTION 76-2-205, MCA."

8

9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

10

11 **Section 1.** Section 76-2-205, MCA, is amended to read:

12 **"76-2-205. Procedure for adoption of regulations and boundaries.** ~~(1)~~ The board of county
13 commissioners shall observe the following procedures in the establishment or revision of described in
14 subsections (2) through (8) when establishing or revising boundaries for zoning districts and ~~in the adoption or~~
15 ~~amendment of~~ when adopting or amending zoning regulations;.

16 ~~(1)(2)~~ (a) Notice of a public hearing on the proposed zoning district boundaries and of regulations for
17 the zoning district must state:

18 (a) ~~state~~:

19 (i) the boundaries of the proposed district;

20 (ii) the general character of the proposed zoning regulations;

21 (iii) the time and place of the public hearing; and

22 (iv) that the proposed zoning regulations are on file for public inspection at the office of the county
23 clerk and recorder;.

24 (b) The notice must be:

25 (i) posted not less than 45 days before the public hearing in at least five public places, including
26 but not limited to public buildings and adjacent to public rights-of-way, within the proposed district; and

27 ~~(c)(ii)~~ be published once a week for 2 weeks in a newspaper of general circulation within the county.

28 ~~(2)(3)~~ At the public hearing, the board of county commissioners shall give the public an opportunity to

1 be heard regarding the proposed zoning district and regulations.

2 ~~(3)~~(4) After the public hearing, the board of county commissioners shall review the proposals of the
3 planning board and shall make any revisions or amendments that it determines to be proper.

4 ~~(4)~~(5) The board of county commissioners may pass a resolution of intention to create a zoning
5 district and to adopt zoning regulations for the district.

6 ~~(5)~~(6) The board of county commissioners shall publish notice of passage of the resolution of
7 intention once a week for 2 weeks in a newspaper of general circulation within the county. The notice must
8 state:

9 (a) the boundaries of the proposed district;

10 (b) the general character of the proposed zoning regulations;

11 (c) that the proposed zoning regulations are on file for public inspection at the office of the county
12 clerk and recorder; and

13 (d) that for 30 days after first publication of this notice, the board of county commissioners will
14 receive written comments on the creation of the zoning district or to the zoning regulations from persons owning
15 real property within the district whose names appear on the last-completed assessment roll of the county.

16 ~~(6)~~(7) Within 30 days after the expiration of the comment period, the board of county commissioners
17 may in its discretion adopt the resolution creating the zoning district or establishing the zoning regulations for
18 the district.

19 ~~(8)~~ (a) When amending a zoning regulation, the board of county commissioners shall provide
20 notice of a public hearing on the proposed amendment to the zoning regulation.

21 (b) The notice must state:

22 (i) the specific changes to the regulation;

23 (ii) the time and place of the public hearing; and

24 (iii) that the original zoning regulation and any proposed amendments to the original zoning
25 regulation are on file for public inspection at the office of the county clerk and recorder.

26 (c) The notice must be:

27 (i) posted not less than 15 days before the public hearing; and

28 (ii) published once a week for 2 weeks in a newspaper of general circulation within the county.

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